



CEO of Nigerian airline and co-defendant indicted for obstruction of justice

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ATLANTA — Allen Onyema, the Chairman, CEO, and founder of Air Peace, a Nigerian airline, has been charged in a superseding indictment with obstruction of justice for submitting false documents to the government in an effort to end an investigation of him that resulted in earlier charges of bank fraud and money laundering. Ejiroghene Eghagha, the airline's Chief of Administration and Finance, was also charged for participating in the obstruction scheme, as well as in the earlier bank fraud counts.

"After allegedly using his airline company as a cover to commit fraud on the United States' banking system, Onyema, along with his co-defendant, allegedly committed additional crimes of fraud in a failed attempt to derail the government's investigation of his conduct," said U.S. Attorney Ryan K. Buchanan. "The diligence of our federal investigative partners revealed the defendants' alleged obstruction scheme, making it possible for the defendants to be held accountable for their aggravated conduct of attempting to impede a federal investigation."

"Allegedly, Onyema and his accomplices fraudulently used the U.S. banking system in an effort to hide the source of their ill-gotten money," said Assistant Special Agent in Charge Lisa Fontanette, IRS Criminal Investigation (IRS-CI) Atlanta Field Office. "Today's superseding indictment is indicative of the dedication IRS-CI special agents and our law enforcement partners have, as part of the Organized Crime Drug Enforcement Task Forces, to neutralize threats to the United States from criminal organizations."

"These cases represent the continued commitment of the Drug Enforcement Administration to identify and hold accountable those who engaged in fraud and money laundering," said Robert J. Murphy, Special Agent in Charge of the DEA Atlanta Division.

"The charges announced today demonstrate the criticality of diligence and truth in criminal justice proceedings," said Steven N. Schrank, Acting Special Agent in Charge, Homeland Security Investigations Atlanta that covers Georgia and Alabama. "HSI and our partners are committed to pursuing those who seek to exploit our nation's financial system and any efforts to cover up illegal activity."

According to U.S. Attorney Buchanan, the superseding indictment, and other information presented in court: Onyema, a Nigerian citizen and businessman, is the CEO and Chairman of Air Peace, a Nigerian airline founded in 2013. Between 2010 and 2018, Onyema travelled frequently to Atlanta, where he opened several personal and business bank accounts. More than \$44.9 million was allegedly transferred into his Atlanta-based accounts from foreign sources.

Beginning in approximately May 2016, Onyema, together with Eghagha, allegedly used a series of export letters of credit to cause banks to transfer more than \$20 million into Atlanta-based bank accounts controlled by Onyema. The letters of credit were purportedly to fund the purchase of five separate Boeing 737 passenger planes by Air Peace and were supported by documents such as purchase agreements, bills of sale, and appraisals. The documents purported to show that Air Peace was purchasing the aircraft from Springfield Aviation Company LLC, a business registered in Georgia.

However, the supporting documents were allegedly fake – Springfield Aviation Company LLC was owned by Onyema and managed on his behalf by a person with no connection to the aviation business, and Springfield Aviation never owned the aircraft. The company that allegedly drafted the appraisals did not exist. Eghagha allegedly participated in this scheme as well, directing the Springfield Aviation manager to sign and send false documents to banks and even using the manager's identity to further the fraud. After Onyema received the money in the United States, he allegedly laundered over \$16 million of the proceeds of the fraud by transferring it to other accounts.

In May 2019, upon discovering that he was under investigation in the Northern District of Georgia for bank fraud, Onyema and Eghagha allegedly directed the Springfield Aviation manager to sign a key business contract, but also specifically told her to not date the document. In October 2019, Onyema allegedly caused his attorneys to present that same contract, now falsely dated as being signed on May 5, 2016 (prior to the bank fraud that began in 2016), to the government in an effort to stop the investigation and unfreeze his bank accounts.

Allen Ifechukwu Athan Onyema, of Lagos, Nigeria, and Ejiroghene Eghagha, of Lagos, Nigeria, were indicted on November 19, 2019, on one count of conspiracy to commit bank fraud, three counts of bank fraud, one count of conspiracy to commit credit application fraud, and three counts of credit application fraud. Additionally, Onyema was charged with 27 counts of money laundering, and Eghagha was charged with one count of aggravated identity theft. On October 8, 2024, they were both charged in a superseding indictment alleging an additional count of obstruction of justice and one count of conspiracy to obstruct justice. The case is criminal action number 1:19-CR-464.

Members of the public are reminded that the indictments only contain charges. The defendants are presumed innocent of the charges and it will be the government's burden to prove the defendants' guilt beyond a reasonable doubt at trial.

The IRS Criminal Investigation, Drug Enforcement Administration, U.S. Immigration and Customs Enforcement's Homeland Security Investigations, Federal Aviation Administration, Department of Commerce, and Department of Treasury are investigating this case.

Assistant U.S. Attorneys Garrett L. Bradford and Christopher J. Huber are prosecuting the case.

IRS-CI is the criminal investigative arm of the IRS, responsible for conducting financial crime investigations, including tax fraud, narcotics trafficking, money-laundering, public corruption, healthcare fraud, identity theft and more. IRS-CI special agents are the only federal law enforcement agents with investigative jurisdiction over violations of the Internal Revenue Code, obtaining a more than a 90 percent federal conviction rate. The agency has 20 field offices located across the U.S. and 12 attaché posts abroad.

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